

# Code of Conduct Enforcement Workshop

**Please change your display name  
to include your pronouns**

(if you're comfortable sharing them)

Click Participants,  
select your name, More >, Rename

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Otter Tech LLC  
sharp@otter.technology

# Workshop Format

- Slide presentations
  - Please ask questions!
  - Ask verbally or in chat
- Breaks:
  - 15 min break at 1:15 in
  - 15 min break at 2:30 in



Public domain:  
U.S. Department of Agriculture

# Ground Rules



CC BY Steve Johnson

- This is a safe(r) space
- If you are asked to stop, you will stop
- Be open to new knowledge
- Acknowledge different lived experiences

# Vocabulary

- Incident
- Reporter
- Reported person



CC BY U.S. Army Africa

# Code of Conduct Enforcement

- Workshop covers:
  - Taking an incident report
  - Protecting reporter privacy
  - Evaluating a report
  - Encouraging a change in behavior
  - Deciding consequences
  - Following up with reported person
- Off topic:
  - Responding to impacted people
  - Documenting the incident



CC BY Open Knowledge

# When taking a report

- Do:
  - Listen
  - Ask clarifying questions
  - Acknowledge emotions
  - "How can I support you?"
  - Thank the reporter
  - Next steps and timeline



CC BY painteverything

- Don't:
  - Judge the reported person
  - Promise any particular action

# Acknowledging Reporter Emotions

- **You felt** (emotion) **when** (behavior)
- "You felt scared when their raised their voice."
- Feels too direct? Try:
  - **"So you felt** (emotion) **when** (behavior)?"
  - **"I'm hearing that you felt** (emotion) **when** (behavior)."

"Nonviolent communication" by Marshall B. Rosenberg, PhD



# Common Reporter Emotions

- Repeating themselves
- Becoming flustered
- Talking fast
- Judgment words
- Anger
- Mistrust



Emotion CC BY 2.0 Osamu Kaneko



# Handling Privacy Concerns

- Report will be confidential
- Take an anonymous report
- Tell reported person  
a witness overheard / saw



Locked CC BY 2.0 montillon.a

# Report Template

- Most important:
  - How to identify the reported person
  - Reporter's contact info
  - Key points of the incident
- [Link to download report template](#)

# Taking an Incident Report: **QUEST**

- **Quiet place** - offer a private room / private chat
- **Unsafe** - call another CoC committee member
- **Emotions** - "You felt (emotion) when (behavior)"
- **Security** - how to protect reporter privacy & safety?
- **Timeline** - when will the CoC committee meet?

Get reporter's contact info.

Thank the reporter.

# Practice Receiving Reports

# Discussion

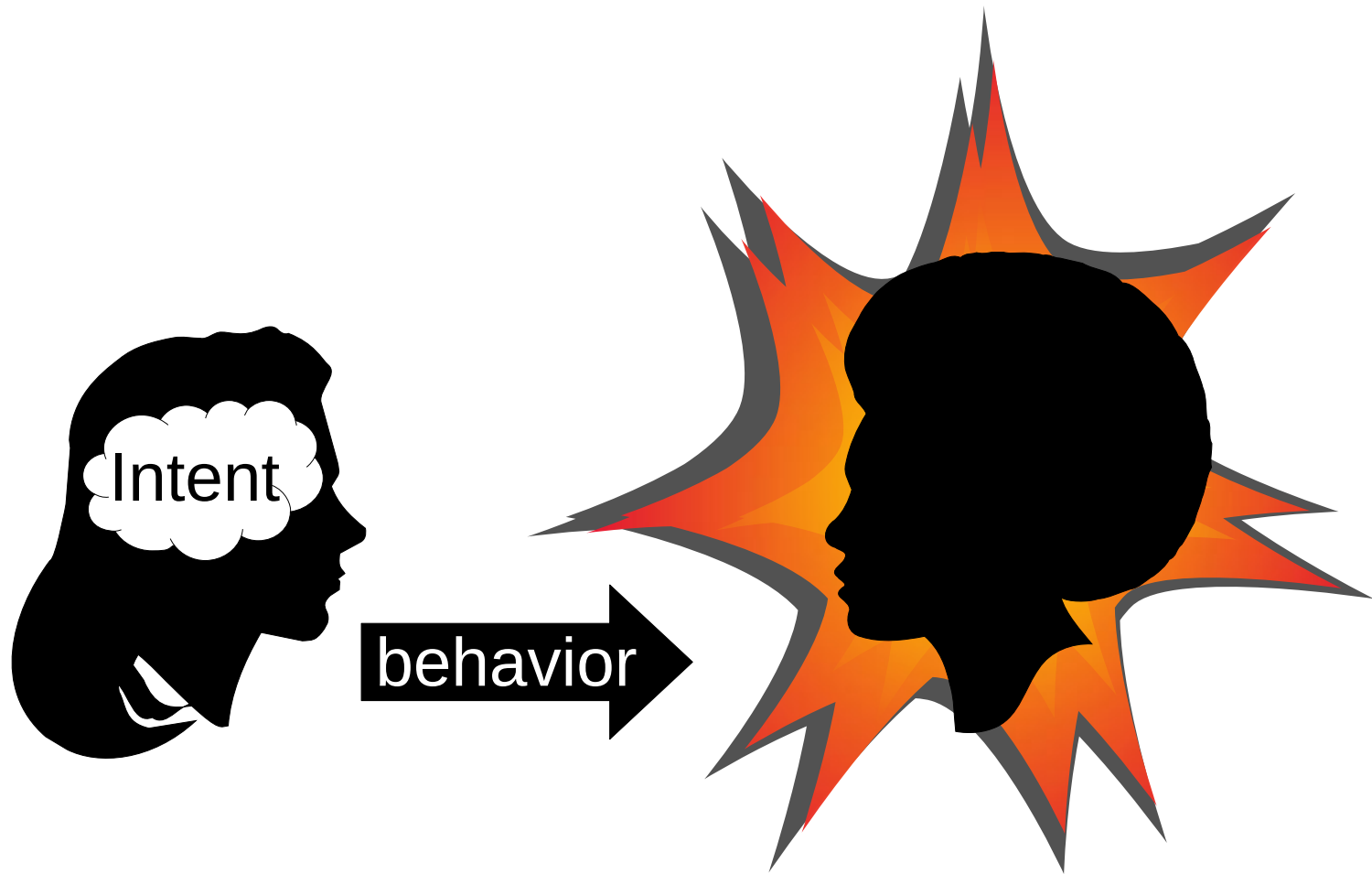
- Any questions that came up?
- For the CoC committee member:
  - What was hard, complex, or complicated?
- For the reporter:
  - What did the CoC committee member do well?
  - What techniques did they use?
  - Any effective phrases?

(Break)

Once you're back,  
write "Back" in the chat

Following up on  
Incident Reports

# Intent vs. Impact



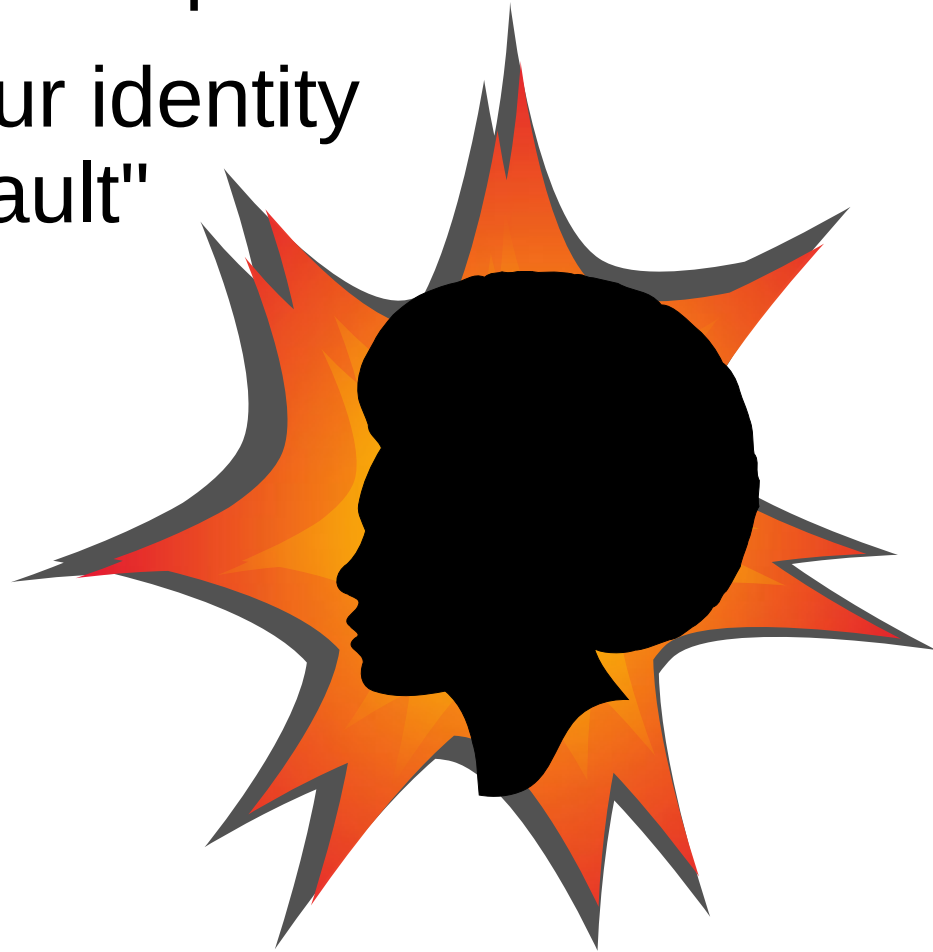


# When does intent matter?

- **Goal: Stop the inappropriate behavior**
- Ask the reported person:
  - Do you agree this behavior was inappropriate?
  - Do you agree to change this behavior?
- Based on those answers, tell your CoC committee if you think the reported person **intends** to continue the behavior

# Microaggressions: Constant Inequality

- Microaggressions are under-reported
- Harm caused because your identity is not considered "the default"
  - e.g. disability, race, gender
- Can be traumatic
- Can be smaller harm that builds up over time



# Microaggressions: Constant Inequality

- Microaggression examples
- **Interpersonal:** a sexist joke
- **Lack of representation:**  
there are no Black or Asian  
community members
- **Policy:** no live captioning  
for conference talks
- **Structural:** websites are  
not accessible to a screen  
reader



# What about False Reporting?

- What does a reporter have to lose?
  - Community
  - Career
  - Safety & mental health
- Society favors reported person
  - less likely to face consequences
- Microaggressions & sexual harassment are under reported
- Believe reporters by default



CC BY Adam Lehman

# Personal Conflicts

- Not all conflicts will be a Code of Conduct violation
- Communications standards
- Is this a pattern?
- Know emotional and verbal abuse behaviors:  
<http://outofthefog.website/traits/>



CC BY Martha Soukup

# Reversed Power Dynamics

- Be cautious of when the power dynamic is reversed
- Reporting process can be used for harassment
- "Our CoC Committee determined this was not a Code of Conduct violation"



CC BY Jesper Sehested  
Pluslexia.com

# Potential Consequences

- Warning
- Final Warning
- Listen and summarize other perspectives first
- Do not discuss a topic
- Do not interact with a person
- Removal of inappropriate material
- Removal from leadership positions
- Temporary Ban
- Permanent Ban

# Evaluating Reports

## Risk and Impact

- Risk:
  - physically unsafe?
  - impacts mental health?
  - risk of behavior being repeated?
- Impact:
  - number of witnesses
  - authority / leadership of reported person
  - impact to people from marginalized groups



# Deciding Response: Examples

|             |                                                                                        |                                                                                          |
|-------------|----------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------|
| High Impact | Reprimand, removal of offensive material<br>Public response from staff or organization | Permanent Ban                                                                            |
| Low Impact  | Issue warning                                                                          | Monitor and document patterns of behavior, warn or temporary ban, remove from leadership |
|             | Low Risk                                                                               | High Risk                                                                                |

(Break)

Once you're back,  
write "Back" in the chat

Following up on  
Incident Reports

# Before Speaking to a Reported Person

- Write down:
  - Their behavior and impact
  - A plan to change their behavior
  - Consequences for their behavior (?)
- What will happen if they don't agree to change their behavior?
- Who can they appeal the decision to?

# Common responses to being reported

- Defensiveness
- Denial
- Blame shifting
- Seeking reassurance
- Apology
- Manipulation



Emotion CC BY 2.0 Osamu Kaneko

# "Calling in" vs "Calling Out"

- Minimize number of people in the discussion
- Use teaming language:
  - our community
  - we need your help
- Shared community goals:
  - collaboration
  - constructive communication
- Practice new skills privately



Blame CC BY 2.0 周小逸 Ian

# Following up with the reported person: **BIRDS**

Go to a private place / private message or video chat  
Have an exit plan. Bring another person if a ban is likely.

- State what their **Behavior** was without judgment words
- State the **Impact** on the community or marginalized group
- Allow the reported person to **Respond**
- **Don't** say who the reporter was
- **Set** a plan to change their behavior

Accept apologies on behalf of the reporter

Practice:  
Following up with  
the Reported Person

# Discussion

- What questions came up?
- For the CoC committee member:
  - What was hard, complex, or complicated?
- For the reported person:
  - What did the CoC committee member do well?
  - What techniques did they use?
  - Any effective phrases?



# Following up after an incident

- Try to talk to everyone impacted
- May need a public statement
- Transparency reports
- Whisper networks exist
- Document the incident
- May need to notify volunteers

Q&A

# Advanced Topics

# Systemic Inequality

- Collective lack of action
- Biased harmful policies or systems
- Negatively impacts marginalized groups
- Example: No 'religious symbols' policies
  - Must choose between a headscarf & education/jobs
  - 2x more Muslim girls don't go to secondary school in France
  - Source:  
<https://www.washingtonpost.com/politics/2019/06/03/how-will-austrias-new-headscarf-ban-affect-muslims/?noredirect=on>

# Dealing with Unwelcome Attendees

- “You aren’t permitted to attend the conference”
- Don’t provide details
- Ask them to leave
- “This is a private venue”
- Get onsite help
- Report for trespassing
- Know your local trespassing laws



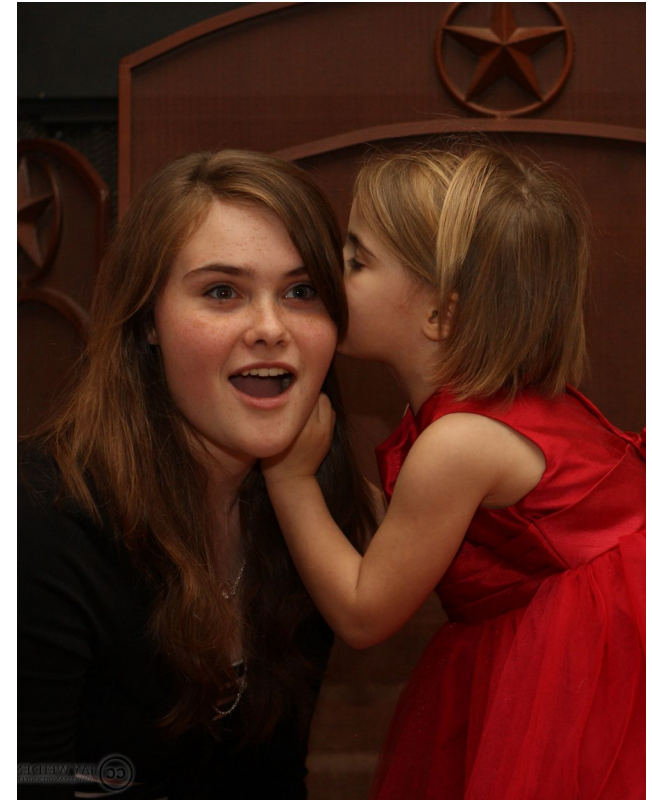
CC BY Mike Mozart

# Dealing with Weapons Policy Violations

- “Weapons are not allowed at our conference”
- Ask them to leave
- Come back without the weapon
- Do not argue, be firm
- Ask staff, response team, security to help
- If there is a safety risk, call 911

# Conflicts of Interest

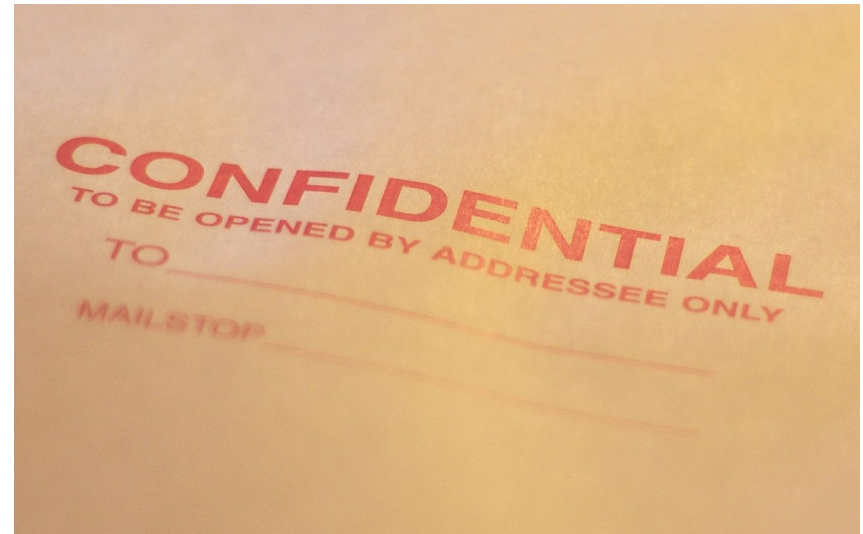
- Is anyone a friend or coworker?
  - conference staff or volunteers
  - incident response team
  - papers committee
  - sponsors
- Review leadership positions for potential leaks:
  - other CoC committee members
  - volunteers & staff
  - papers committee
  - board members



CC BY Jay Weldenbach

# Confidentiality Issues

- Reporter fears retaliation
- NDAs & severance
- Police Investigation
- Limit incident docs access
- Ask around (discretely)
- Often multiple incidents
- Other grounds to dismiss



CC BY Casey Marshall



# Known Harassers

- Not just internet trolls
- Stalkers do show up
- Power plays & disruption
- Have a mitigation plan
- Strict confidentiality plan
- Ensure attendee safety



CC BY Paul VanDerWerf